

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2212

By: Lay

AS INTRODUCED

An Act relating to labor; amending Section 5, Chapter 361, O.S.L. 2023 (40 O.S. Supp. 2024, Section 904), which relates to the Oklahoma Workforce Commission responsibilities; adding oversight duties; establishing the Oklahoma Registered Apprenticeship Program; defining terms; providing qualifications and eligibility; establishing funding; authorizing income tax credit for certain qualified employers; authorizing income tax credit for certain qualified apprentices; providing for credit amount; prohibiting use of tax credit to reduce income tax liability amount less than zero; providing for carryover; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 5, Chapter 361, O.S.L. 2023 (40 O.S. Supp. 2024, Section 904), is amended to read as follows:

Section 904. The Oklahoma Workforce Commission shall have the following powers, duties, and responsibilities:

1. To administer the provisions of this act or any duty as directed by statute;

2. To establish an office for the Commission within this state;

1 3. To elect whatever other officers may be necessary to direct
2 operations of the Commission;

3 4. To employ or contract for personnel and administrative
4 support as the Commission deems appropriate to carry out the purpose
5 and provisions of this act, including but not limited to a nonprofit
6 corporation to carry out the Commission's objectives, an Executive
7 Director or other chief executive officer and any other employees or
8 contractors the Commission deems appropriate, and to prescribe their
9 duties and fix their compensation;

10 5. To administer the Workforce Coordination Revolving Fund
11 created in Section 255.4 of Title 62 of the Oklahoma Statutes;

12 6. To approve or disapprove the budget of the Commission;

13 7. To promulgate rules to carry out the provisions of this act;

14 8. To enter into contracts or agreements for studies,
15 professional services, grant administration and procurement,
16 research projects, supplies, or any other services the Commission
17 deems necessary to carry out its purpose, and to incur those
18 expenses necessary to carry out those purposes;

19 9. To cooperate with any private, local, state, or national
20 commission, organization, agency, or group and to make contracts and
21 agreements for joint programs beneficial to Oklahoma's workforce
22 development efforts;

23 10. To accept donations, grants, contributions, and gifts from
24 any public or private source and deposit such in the Workforce

1 Coordination Revolving Fund, created in Section 255.4 of Title 62 of
2 the Oklahoma Statutes;

3 11. To oversee and direct to the extent permitted by law the
4 activities and administration of the Governor's Council for
5 Workforce and Economic Development, including but not limited to the
6 creation and submission of state plans to the federal government
7 pursuant to the provisions of the Workforce Innovation and
8 Opportunity Act;

9 12. To collect data from federal, state, and local agencies,
10 departments, educational institutions, boards, commissions, or any
11 other entities including, but not limited to:

- 12 a. number of participants in workforce development
- 13 programming,
- 14 b. cost per participant,
- 15 c. wages before and after participation in programs,
- 16 d. degree or certificate conferred on each participant,
- 17 e. number of jobs open needing degrees or certificates,
- 18 f. labor force and economic information, and
- 19 g. any other information the Commission deems appropriate
- 20 to guide funding decisions, facilitate its work or the
- 21 work of workforce development entities in the state,
- 22 or to understand the impact of the state's workforce
- 23 efforts and programming;
- 24

1 13. To create and maintain a public dashboard and create
2 reports with data concerning workforce development efforts in the
3 state. All state and local agencies, departments, educational
4 institutions, boards, commissions, and other public entities shall
5 cooperate with information and data requests from the Commission or
6 its designees. It is the intent of the Legislature that the
7 Oklahoma Workforce Commission serve as the centralized data and
8 information repository for workforce development activities for the
9 state; ~~and~~

10 14. To make recommendations to the Legislature to improve
11 workforce development programs in the state; and

12 15. To administer the Oklahoma Registered Apprenticeship
13 Program (ORAP) with a focus on developing, registering, and
14 monitoring apprenticeships statewide.

15 SECTION 2. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 910 of Title 40, unless there is
17 created a duplication in numbering, reads as follows:

18 The Oklahoma Registered Apprenticeship Program (ORAP) is hereby
19 established and is subject to the provisions under this act. This
20 act seeks to modernize and expand apprenticeship opportunities
21 across Oklahoma, aligning with federal and state workforce goals,
22 while fostering inclusion, equity, and economic growth.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 911 of Title 40, unless there is
3 created a duplication in numbering, reads as follows:

4 A. As used in this section, unless used in a context that
5 clearly requires a different meaning, the term:

6 1. "Apprenticeship" or "apprenticeship program" means an
7 apprenticeship program registered under the federal National
8 Apprenticeship Act, 29 U.S.C., Section 50 et seq., or another
9 federal apprenticeship program administered by the United States
10 Department of Labor's Office of Apprenticeship;

11 2. "Associate of applied science degree" means an associate-
12 level college degree with a focus on a particular applied science or
13 technical skill designed for students planning to enter the
14 workforce upon degree completion;

15 3. "Eligible course" means any class or program of instruction
16 offered at a public community and technical college for which the
17 eligible student receives credit toward the general education
18 requirements that lead to an associate of applied science degree.
19 Applied academics for adult education instruction, developmental
20 education, physical education courses, and recreation and leisure
21 studies courses are not eligible courses for purposes of this
22 program;

23 4. "Eligible student" means any person who has graduated from
24 high school or has obtained a general equivalency diploma or other

1 approved equivalency-based test, is eighteen (18) years of age or
2 older, and is an apprentice or participating in an apprenticeship
3 program as verified by the registered apprenticeship program who
4 registers to participate in the program. Eligible student also
5 includes journeyworkers who have received a certificate recognized
6 by the United States Department of Labor; and

7 5. "Student-apprentice" means a student who has been accepted
8 into and is participating in the program created in this section.

9 B. Under the supervision of the Oklahoma Workforce Commission,
10 the Chancellor shall establish the ORAP program whereby the state's
11 public community and technical colleges may offer general education
12 courses to eligible students in a manner and on a timeline that will
13 allow the eligible student to earn at least fifteen (15) credit
14 hours of general education courses toward an associate of applied
15 science degree.

16 1. To be eligible for the ORAP program, an individual must be
17 enrolled in an apprenticeship program recognized by the United
18 States Department of Labor's Office of Apprenticeship or must have
19 received a United States Department of Labor Certificate of
20 Completion of Apprenticeship.

21 2. An apprentice or journeyworker may apply for enrollment in
22 the ORAP program at the next available program offering.

23 3. Student-apprentices shall complete and pass all general
24 education coursework within six (6) years from the initial date of

1 enrollment in the ORAP program or within two (2) years after
2 completing the apprentice program, whichever is longer.
3 Journeyworkers shall complete and pass all general education
4 coursework within six (6) years from the initial date of enrollment.

5 SECTION 4. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 912 of Title 40, unless there is
7 created a duplication in numbering, reads as follows:

8 For employers to be eligible under Oklahoma Registered
9 Apprenticeship Program (ORAP), the employer must:

- 10 1. Register apprenticeships with the Oklahoma Workforce
11 Commission and submit detailed workplans;
- 12 2. Establish a wage schedule and benefits based on skill level;
13 and
- 14 3. Ensure apprenticeships are accessible and inclusive to
15 underrepresented groups.

16 SECTION 5. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 913 of Title 40, unless there is
18 created a duplication in numbering, reads as follows:

19 Per Section 904 of Title 40 of the Oklahoma Statutes, the
20 Oklahoma Workforce Commission has the following duties:

- 21 1. Serve as the coordinating body for apprenticeship programs
22 and ensure alignment with the state's economic priorities;
- 23 2. Collect data on apprenticeship participation, completion
24 rates, and economic outcomes;

1 3. Maintain a public dashboard to tract program metrics and
2 promote transparency; and

3 4. Create and maintain the Oklahoma Apprenticeship Grant Fund.

4 SECTION 6. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 914 of Title 40, unless there is
6 created a duplication in numbering, reads as follows:

7 Funding for ORAP is established under the Oklahoma Workforce
8 Commission to cover tuition, tools, and other necessary resources to
9 ensure success in apprenticeships.

10 SECTION 7. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 2357.901 of Title 68, unless
12 there is created a duplication in numbering, reads as follows:

13 A. As used in this section:

14 1. "Qualified employer" means any lawful business entity that
15 is authorized to participate in an apprenticeship program; and

16 2. "Qualified apprentice" means a person enrolled in secondary
17 or postsecondary Career and Technical Education (CTE) programs.

18 B. For taxable years beginning after December 31, 2025, there
19 shall be allowed as a credit against the tax imposed pursuant to
20 Section 2355 of Title 68 of the Oklahoma Statutes in the amount of:

21 1. Two Thousand Five Hundred Dollars (\$2,500.00) for each
22 qualified employer participating in a qualified apprenticeship
23 program; and
24

1 2. Five Hundred Dollars (\$500.00) for each qualified
2 apprentice.

3 C. The tax credit authorized by this section may not be used to
4 reduce the income tax liability of the taxpayer to less than zero
5 (0).

6 D. To the extent not used, the tax credit authorized by this
7 section may be carried over, in order, to each of the five (5)
8 succeeding tax years.

9 SECTION 8. This act shall become effective November 1, 2025.

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